

CASSATION & ECHR · 19 MAR 2001

Cassation — supplementary deliberation

TYPE	COURT	DATE	PARTIES
Appeal / remedy	The Court of Cassation	19 Mar 2001	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

Supplementary post-hearing note from McDonald's — Court of Cassation · 19 March 2001

Overview: supplementary post-hearing note (note en délibéré) filed on behalf of McDonald's France by SCP Delaporte-Briard, counsel at the Conseil d'État and the Court of Cassation, after the hearing of 7 March 2001, against Bernard Collorafi, SEBOL, B et O and LES PINS (SCP Bouzidi), in appeal to the Court of Cassation no. X 00-14.487.

Key points

McDonald's supplements its observations on the amount still owed. It disputes the opposing calculation, which would limit the debt to 2,238,287.57 F as at 31 December 2000, and maintains a balance of 2,837,763.84 F. It then responds to the argument based on the judicial mortgage taken on Mr Collorafi's house in Le Cannet: according to the correspondence from the notary handling the sale, it could in fact receive no money, as it holds only a second-ranking mortgage, behind a statutory mortgage of the Treasury and various third-party holder notices. It points out contradictions in the preliminary sale agreement produced: Mr Collorafi is only a part-owner of the property (with his wife and the SCI "Collo") and the price, set at 3,200,000 F in the preliminary agreement, had allegedly fallen to 1,866,666 F according to the notary. It concludes that, in the absence of any start of enforcement of the judgment under challenge, the appeal to the Court of Cassation must be removed from the list of cases to be heard. Annexed is a letter from Maître Amalvy, notary in Maussane-les-Alpilles, of 28 July 2000, detailing the mortgage registrations and tax claims encumbering the property.

Significance

A document from the phase before the Court of Cassation: in it McDonald's seeks to have the appeal removed from the list, invoking the non-enforcement of the judgment and the apparent insolvency of the debtor.

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Source: bernardcollorafi.org/en/documents/supplementary-post-hearing-note-cassation-mcdonalds-removal-appeal-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.